

Manish Rungta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 August 2018 · Writ-C No. 26979 of 2018 · **Writ disposed; representation to EE; no coercive action for 45 days.**

HEADNOTE

Writ seeking quashing of a 6.7.2018 theft-of-electricity penalty notice for Rs. 1,20,02,967 was disposed of without merits after the petitioner confined his prayer to a fresh objection. He was directed to appear before the Executive Engineer on 6.9.2018 and file a representation; the authority to decide by speaking order after hearing, preferably within 15 days. No coercive action for 45 days or until that disposal, whichever is earlier.

FACTUAL SUMMARY

The petitioner challenged a 6 July 2018 notice of the electricity department demanding Rs. 1,20,02,967 as penalty for alleged theft of electricity, asserting that it had been issued without following the U.P. Electricity Supply Code, 2005. After an amendment, impleadment of the Tahsildar, and argument at length, counsel confined the prayer to leave to file a fresh objection before the Executive Engineer with a time-bound decision. The Court heard both sides and disposed of the writ without examining the notice on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.9

theft-penalty notice — representation to assessing officer

HOLDING

The Court expressed no opinion on whether the 6.7.2018 theft-penalty notice complied with the Supply Code. On the petitioner confining his prayer, he was directed to appear before the Executive Engineer on 6.9.2018 and file a fresh representation/objection; if filed, that authority shall decide it by a speaking order after hearing, in accordance with law, preferably within 15 days. No coercive action shall be taken for 45 days or until disposal of the representation, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 6.7.2018 NOTICE DEMANDING RS. 1,20,02,967 AS PENALTY FOR ALLEGED THEFT OF ELECTRICITY WAS ISSUED IN COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

Court expressly declined to express any opinion on the merits. ¶ 1